

GZ: 2024-0.028.256 dated June 27, 2024 (Case Number: DSB-D124.1818/23)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical data, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION STATEMENT

The
Data Protection Authority
decides
on
the
data protection complaint
of
Ulrich A***

(complainant) dated July 7, 2023 against the municipality of N***berg (respondent), represented by B*** Rechtsanwälte GmbH, regarding the violation of the right to confidentiality as follows:

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The complaint is upheld, and it is established that the respondent has violated the complainant's right to confidentiality by disclosing his personal data, namely his first and last name, to a third party during a file inspection on June 22, 2023.

Legal bases: Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1;

§§ 1, 18 para. 1, as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999
as amended.

REASONING

A. Submissions of the parties and procedural history

1. In an initial submission, the complainant addressed the authority on July 7, 2023, received on July 25, 2023, and amended on September 7, 2023, stating as follows:

During a visit to the municipal office of N***berg on June 22, 2023, he informed the building department

that the fire safety measures and sound insulation of a residential building owned by a property owner were not in order

and that this needed to be checked during the upcoming building hearing. This report led to him being contacted

by the affected property owner just a few hours after his submission, during which he was insulted and threatened.

On July 6, 2023, he was confronted by another neighbor regarding his report, whereby the complainant was not aware

that his submission constituted a report.

Since the municipality of N***berg had forwarded his data to the reported property owner, he is filing this complaint

for violation of his fundamental right to confidentiality according to § 1 para. 1 DSG in conjunction with Art. 5 GDPR.

2. In the amended submission of September 7, 2023, the complainant specified that his submission to the municipal office specifically consisted of the fact that there were no fire alarm systems at the D***

housing project, the apartment doors were fire-resistant, and the sound insulation between the apartments was not up to standard.

Subsequently, he was confronted by the property owner by phone and approached about the report by two uninvolved individuals.

Accordingly, he assumes that the municipality has disclosed the information to additional people.

3. In a statement dated October 2, 2023, the respondent replied as follows:

The respondent initially confirmed that it had received a corresponding submission from the complainant on June 22, 2023,

and presented a corresponding file note as evidence. The builder, to whom the report pertains, subsequently

inspected the files on June 22, 2023, during which he learned of the complainant's report.

The municipality can only exclude individual components from the file inspection to the extent that the inspection

would cause harm to the legitimate interests of a party or third parties or endanger the tasks of an authority

(§ 17 para. 3 AVG). This is a case-by-case decision and must be weighed, whereby there was no reason in the

present case to restrict the file inspection. Neither did the complainant request that the submission be made anonymously,

nor did he express concerns regarding any potential consequences.

Furthermore, the respondent noted that the submission only contained the complainant's first and last name,

but not his telephone number. This was freely visible on the internet. In contrast, there is the builder's interest in

all relevant content, which aligns with the purpose of the building process. For processing through disclosure,

the legal basis of Art. 6 para. 1 lit. c and para. 3 GDPR is applicable.

4. In a supplementary statement, the respondent stated on October 2, 2023, that all submissions, including date, submitter, and reports, are documented by it, filed in the procedural record, and must be processed if necessary.

Based on the complainant's report, there was a building police inspection, which the respondent is also obliged to conduct.

The property owner exercised his right and inspected the files on the day of the report. It is the obligation of the respondent to grant this right.

5. In the hearing with the parties on January 11, 2024, the complainant stated that he had already made a similar submission in 2022, but this had not led to any record. Only in 2023 was the submission suddenly noted. Furthermore, he was unclear as to why the builder was granted access to the files, given that it was known that he was a choleric person.

B. Subject of the Complaint

The subject of the complaint is the question of whether the respondent has violated the complainant's fundamental right to data protection by disclosing his personal data to third parties.

C. Findings of Fact

The owner of the property located at U***gasse *4, **** N***berg am **** (cadastral municipality *4*3*2 C***feld, entry number 6*6) is D*** Projektentwicklungs- und Vermietungs GmbH (FN *6*9*3I). The aforementioned GmbH has its registered office in the political municipality of R***hausen am ****, L***berg, P***platz *8, and the managing directors are Michael, Krista, and Johannes D***.

On June 22, 2023, the complainant submitted a request to the respondent, stating that the fire safety measures and the sound insulation of the apartment partition walls at the specified address were not in order and that this needed to be checked at the upcoming construction hearing. On the same day, one of the managing directors of the property owner inspected the files. In the course of this, the respondent disclosed the first and last name of the complainant, but not his telephone number. The submission was made by the complainant without a request for the anonymization of his data or any mention of concerns regarding potential reprisals. Nevertheless, the complainant faced negative consequences in connection with his submission, such as being pressured by one of the managing directors of the property owner or that his submission became known to third parties, resulting in

reputational damage.

On July 20, 2023, a building police inspection took place in light of the complainant's report.

Assessment of Evidence: The findings were based on the submissions of the complainant dated July 7, 2023, September 7, 2023, and January 11, 2024, as well as the submissions of the respondent dated October 2, 2023. On the other hand, the findings were derived from the submitted, unobjectionable document, the record of the respondent dated June 22, 2023, regarding the complainant's report, as well as from official investigations regarding the land and commercial register. The fact that the complainant did not provide any information about potential reprisals in the course of his report was evident from the aforementioned record as well as from the statements of both parties. The fact that a building police inspection took place on July 20, 2023, was based on the corresponding submitted letter to the property owner. The respondent's claim that the complainant's telephone number was publicly accessible on the internet was verified by the authority, which allowed it to assume that the number was indeed not disclosed by the authority.

D. From a legal perspective, it follows:

According to § 1 para. 1 DSG, everyone has the right to confidentiality of their personal data, provided that there is a legitimate interest in doing so. The existence of such an interest is excluded if data is not accessible to a confidentiality claim due to its general availability or because it cannot be traced back to the affected individual.

In the present case, the disclosed first and last name undoubtedly refers to the complainant.

Regarding a violation of the right to confidentiality, it does not matter how the data is processed; even an oral communication can constitute a violation of this provision (cf. the ruling of the Administrative Court of February 28, 2018, Ra 2015/04/0087).

Thus, the first and last name of the complainant disclosed to the managing director of the property owner falls within the material scope of protection of § 1 DSG, as there has been processing of the complainant's personal data in this regard.

Restrictions on the right to confidentiality are permissible according to § 1 para. 2 DSG when personal data is used in the vital interest of the affected individual, when the affected individual has given their consent (or in the terminology of the GDPR: approval), when there is a qualified legal basis for the use, or when the use is justified by overriding legitimate interests of a third party.

In the present case, the disclosure of the relevant data by the respondent was based on a qualified legal basis. The respondent stated that the disclosure enabled the property owner's right to access the files.

For the permissibility of an interference with the fundamental right to confidentiality based on a legal basis, three conditions must be met:

- The interference must occur to safeguard overriding legitimate interests of another (balancing of interests).

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The intervention may only take place on the basis of laws that are necessary for the reasons stated in Article 8(2) of the European Convention on Human Rights (ECHR) (material legal reservation).

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The intervention in the fundamental right may only be carried out in the least severe manner that leads to the intended goal.

The property owner exercised her right to inspect the files pursuant to § 17 AVG when the first and last name of the complainant were disclosed to her in this context. The right of a party to inspect the files generally extends to all documents that relate to their case. Excluded from inspection are file components under § 17(3) AVG only to the extent that certain legitimate interests oppose inspection, whereby the authority must weigh the party's interest in file inspection in light of its purpose against the legitimate interests of other parties or third parties on a case-by-case basis (see, for example, the ruling of the Administrative Court (VwGH) of May 22, 2012, 2009/04/0187 and of April 9, 2013, 2011/04/0207).

In systematic interpretation, it must be assumed that the term "legitimate interests" of a party or a third party in this context is broader than that of "legal interests" in the sense of § 8 AVG. The provision

under § 17(3) AVG protects, among other things, the interest of a witness or informant in the avoidance of "reprisals" (cf. the ruling of the VwGH of December 19, 2000, ZI. 95/12/0007) or in their physical integrity (cf. the ruling of the VwGH of October 18, 1988, ZI. 88/14/0092 regarding § 90(2) BAO).

In this context, it is important to refer to the ruling of the Constitutional Court, which states that the interests of procedural parties in access to procedurally relevant information compete with the interests of procedural parties in the protection of confidential information and trade secrets. Accordingly, neither the right guaranteed by Article 6 ECHR within the framework of the principle of equality of arms to access procedural files nor the right, particularly protected by Article 8 ECHR, to confidentiality of business and trade secrets constitutes an absolutely protected legal position, and a corresponding balancing of interests must be conducted (cf. regarding "secret evidence" the ruling of the VfGH of October 10, 2019, GZ E 1025/2018-21).

Applied to the present case, these statements mean that the respondent should have conducted a balancing of interests between the right to inspect files under § 17 AVG and the fundamental right to confidentiality under § 1(1) DSG before disclosing the relevant data of the complainant (cf. in this context also the decision of April 18, 2019, GZ DSB-D122.913/0001-DSB/2019, which deals with the relationship between § 17 AVG and Article 15 GDPR and the necessity of a balancing of interests).

As the respondent correctly stated in her submission, there is a comprehensible interest of the property owner in having complete knowledge of the contents of the files regarding the building hearing. However, the interest in complete information on the part of the property owner must be weighed less heavily than the interest in confidentiality on the part of the complainant, who had the – as it later turned out, justified – fear of being pressured by his submission. The provision of § 17(3) AVG (and as a consequence also § 1(1) DSG) must be observed even in the case of a non-anonymous report, and legitimate interests that require a restriction of file inspection must be taken into account in any case.

To what extent it was necessary to disclose the identity of the complainant to the property owner for the enforcement of rights and to achieve the goal of § 17 AVG, namely to ensure the right to inspect files, the respondent could not demonstrate, and it is also not apparent to the data protection authority. It is thus also evident that the disclosure did not represent the least severe means to satisfy the information needs of the property owner and constituted a disregard for the principle of data minimization.

The complaint was therefore to be upheld as stated.